



Ministerial Salaries Consolidation Act 1965

1965 CHAPTER 58

An Act to consolidate the enactments relating to the salaries of Ministers, the pensions of Prime Ministers, the salaries of Opposition Leaders and Chief Whips and other matters connected therewith.

[5th August 1965]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Subject to the provisions of this Act, there shall be ^{Salaries of} paid to the holder of any Ministerial office specified in Schedule 1 ^{Ministers.} to this Act an annual salary of the amount stated in relation to that office in the second column of that Schedule.

(2) The annual amount of the salary payable under this section—

- (a) to a Minister of State or to the Chief Secretary to the Treasury;
- (b) to the holder of the office of Lord President of the Council, Lord Privy Seal, Chancellor of the Duchy of Lancaster or Paymaster General when not a Member of the Cabinet,

shall be such as the First Lord of the Treasury may determine, not exceeding in any case the amount stated in the second column of the said Schedule.

(3) The date upon which the holder of any office described in subsection (2)(b) of this section becomes or ceases to be a Member of the Cabinet shall be published in the London Gazette, and any such notification shall be conclusive evidence for the purposes of that subsection.

Number of holders of offices to whom salaries may be paid.

2.—(1) The number of persons to whom salaries may be paid at any time as holders of the office of Secretary of State shall not exceed nine.

(2) The number of persons to whom salaries may be paid at any time as Ministers of State shall not exceed nineteen.

(3) The number of persons to whom salaries may be paid at any time—

(a) as Treasury Secretaries, shall not exceed two,

(b) as Junior Lords of the Treasury, shall not exceed five,

(c) as Assistant Government Whips in the House of Commons, shall not exceed six,

(d) as Lords in Waiting, shall not exceed three.

(4) The number of persons to whom salaries may be paid at any time as Parliamentary Secretaries (other than Treasury Secretaries) shall not exceed thirty-six.

Pensions of Prime Ministers.

1868 c. 72.

3.—(1) Subject to subsection (2) of this section, any person who has been Prime Minister and has as First Lord of the Treasury taken the official oath prescribed by section 5 of the Promissory Oaths Act 1868, shall be entitled to a pension of the amount prescribed by this section.

(2) No pension shall be payable under subsection (1) of this section to any person so long as he is in receipt of any salary payable out of the Consolidated Fund of the United Kingdom or the revenues of the Duchy of Lancaster, or any salary payable out of moneys provided by Parliament other than a salary or allowance payable out of moneys so provided in respect of his membership of the House of Commons.

(3) The annual amount of a pension under subsection (1) of this section shall be as follows:—

(a) in the case of a person who ceases to hold office as Prime Minister and First Lord of the Treasury after 31st March 1965, £4,000 ;

(b) in any other case, £2,000,

1965 c. 11.

but this subsection shall not affect section 17 of the Ministerial Salaries and Members' Pensions Act 1965 (provision for increase of pensions of past Prime Ministers).

(4) On the death of a person who holds or has held office as aforesaid at any time after 31st March 1965, the provisions of sections 8 to 10 of the Ministerial Salaries and Members' Pensions Act 1965 (widows' and dependants' pensions) shall apply as if the deceased had been entitled at the time of his death to a pension under section 7 of that Act of an annual

amount equal to two-thirds of the amount prescribed by subsection (3)(a) of this section, but subject to the following modifications, that is to say—

- (a) any pension under those provisions shall be paid as directed by section 7(3) of this Act and not out of the Members' Contributory Pension Fund ; and
- (b) for any reference in those provisions to the Trustees there shall be substituted a reference to the Treasury.

4.—(1) Subject to subsection (2) of this section, the following annual salaries shall be paid to the Leaders and Chief Whips of the Opposition, that is to say—

Salaries of
Opposition
Leaders
and Whips.

- (a) to the Leader of the Opposition in the House of Commons, £4,500, and to the Chief Opposition Whip in that House, £3,750 ;
- (b) to the Leader of the Opposition in the House of Lords, £2,000, and to the Chief Opposition Whip in that House, £1,500.

(2) No salary shall be payable under this section to a person who is in receipt of a pension under section 3(1) of this Act.

(3) In this section "Leader of the Opposition" means, in relation to either House of Parliament, that Member of that House who is for the time being the Leader in that House of the party in opposition to Her Majesty's Government having the greatest numerical strength in the House of Commons ; and "Chief Opposition Whip" means, in relation to either House of Parliament, the person for the time being nominated as such by the Leader of the Opposition in that House.

(4) If any doubt arises as to which is or was at any material time the party in opposition to Her Majesty's Government having the greatest numerical strength in the House of Commons, or as to who is or was at any material time the leader in that House of such a party, the question shall be decided for the purposes of this section by the Speaker of the House of Commons, and his decision, certified in writing under his hand, shall be final and conclusive.

(5) If any doubt arises as to who is or was at any material time the Leader in the House of Lords of the said party, the question shall be decided for the purposes of this section by the Lord Chancellor, and his decision, certified in writing under his hand, shall be final and conclusive.

5. A person to whom any salary is payable under this Act shall be entitled to receive only one such salary, but if he is the holder of two or more offices in respect of which a salary is so payable and there is a difference between the salaries

Provision
against
duplicate
salaries.

payable in respect of those offices, the office in respect of which salary is payable to him shall be that in respect of which the highest salary is payable.

Extension to
Ministers of
Superannua-
tion Act
1949 s. 41.
1949 c. 44.

6. Section 41 of the Superannuation Act 1949 (provision for the payment to civil servants and other persons employed in a civil capacity for the purposes of Her Majesty's Government of gratuities and allowances in respect of injuries incurred or diseases contracted in the discharge of their duties) shall apply in relation to persons holding office in Her Majesty's Government in the United Kingdom as it applies to persons employed in a civil capacity for the purposes of that Government.

Provision
for payment
of salaries
and pensions.

7.—(1) The salaries payable under section 1 of this Act shall be paid out of moneys provided by Parliament and, in the case of those payable in respect of the following offices, that is to say—

- (a) Treasurer, Comptroller and Vice-Chamberlain of Her Majesty's Household ; and
- (b) Captain of the Honorable Corps of Gentlemen at Arms, Captain of the Queen's Bodyguard of the Yeomen of the Guard and Lord in Waiting,

shall be paid out of moneys so provided as part of the expenses of the Treasury.

(2) The sums payable out of moneys provided by Parliament in respect of the salary of the Chancellor of the Duchy of Lancaster shall be reduced by the amount of the salary payable to him otherwise than out of moneys so provided in respect of his office.

(3) The salaries payable under section 4 of this Act and any pension payable under section 3 of this Act shall be charged on and payable out of the Consolidated Fund of the United Kingdom.

Interpretation.

8.—(1) In this Act the following expressions have the meanings hereby respectively assigned to them, that is to say:—

“Junior Lord of the Treasury” means any Lord Commissioner of the Treasury other than the First Lord and the Chancellor of the Exchequer ;

“Minister of State” has the same meaning as in the House of Commons Disqualification Act 1957 ;

“Parliamentary Secretary” includes any Parliamentary Under-Secretary of State and the Assistant Postmaster General ;

“Treasury Secretaries” means the Parliamentary Secretary and the Financial Secretary to the Treasury.

1957 c. 20

(2) The amount specified in this Act as being the amount of any salary payable thereunder out of moneys provided by Parliament shall be taken to be the maximum amount so payable, and accordingly, notwithstanding the provisions of this Act as to any such amount, the salary so payable in any year in respect of any office may be of a less amount than that so specified.

9.—(1) The enactments described in Schedule 2 to this Act are hereby repealed to the extent specified in the third column of that Schedule. Repeals, consequential amendment and transitional provisions.

(2) In section 13(1) of the House of Commons Disqualification Act 1957, in the definition of "Minister of State", for the words "section 2 of the Ministerial Salaries Act 1946" there shall be substituted the words "section 7(1)(b) of the Ministerial Salaries Consolidation Act 1965". 1957 c. 20. 1946 c. 55.

(3) The repeal by this Act of section 3 of the Ministerial Salaries Act 1957 shall not affect any warrant issued by virtue of that section under section 41 of the Superannuation Act 1949, and any such warrant shall have effect as if issued by virtue of section 6 of this Act. 1957 c. 47. 1949 c. 44.

(4) Without prejudice to section 38(1) of the Interpretation Act 1889, any reference in any enactment or document to any enactment repealed by this Act shall be construed as a reference to this Act or, as the case may require, the corresponding provision of this Act. 1889 c. 63.

(5) Any Minute of the Treasury regulating the remuneration of the Law Officers of the Crown which was in force on 1st April 1965 shall have effect as if the relevant salary stated in Schedule 1 to this Act were substituted for the salary specified in the Minute.

10. This Act may be cited as the Ministerial Salaries Consolidation Act 1965. Short title.

SCHEDULES

Section 1.

SCHEDULE 1

MINISTERIAL SALARIES

<i>Minister</i>	<i>Salary £</i>
Prime Minister and First Lord of the Treasury	14,000
Chancellor of the Exchequer	8,500
Secretary of State	8,500
Minister of Agriculture, Fisheries and Food	8,500
Minister of Aviation	8,500
Minister of Health	8,500
Minister of Housing and Local Government	8,500
Minister of Labour	8,500
Minister of Land and Natural Resources	8,500
Minister of Overseas Development	8,500
Minister of Pensions and National Insurance	8,500
Postmaster General	8,500
Minister of Power	8,500
Minister of Public Building and Works	8,500
Minister of Technology	8,500
President of the Board of Trade	8,500
Minister of Transport	8,500
Lord President of the Council	8,500
Lord Privy Seal	8,500
Chancellor of the Duchy of Lancaster	8,500
Paymaster General	8,500
Minister of State	8,500
Chief Secretary of the Treasury	8,500
Attorney General	13,000
Solicitor General	9,000
Lord Advocate	8,000
Solicitor General for Scotland	5,625
Parliamentary Secretary to the Treasury	5,625
Financial Secretary to the Treasury	5,625
Captain of the Honorable Corps of Gentlemen-at-Arms...	4,500
Parliamentary Under-Secretary of State	3,750

<i>Minister</i>	<i>Salary £</i>	<i>SCH. 1</i>
Parliamentary Secretaries—		
Ministry of Agriculture, Fisheries and Food	3,750	
Ministry of Aviation	3,750	
Ministry of Health	3,750	
Ministry of Housing and Local Government	3,750	
Ministry of Labour	3,750	
Ministry of Land and Natural Resources	3,750	
Ministry of Overseas Development	3,750	
Ministry of Pensions and National Insurance	3,750	
Ministry of Power	3,750	
Ministry of Public Building and Works	3,750	
Ministry of Technology	3,750	
Board of Trade	3,750	
Ministry of Transport	3,750	
Assistant Postmaster General	3,750	
Captain of the Queen's Bodyguard of the Yeomen of the Guard	3,300	
Treasurer of Her Majesty's Household	3,300	
Comptroller of Her Majesty's Household	3,000	
Vice-Chamberlain of Her Majesty's Household	3,000	
Junior Lord of the Treasury	3,000	
Assistant Whip, House of Commons	3,000	
Lord in Waiting	3,000	

Section 9.

SCHEDULE 2

ENACTMENTS REPEALED

Chapter	Short Title	Extent of Repeal
26 Geo. 5 & 1 Edw. 8. c. 15.	The Civil List Act 1936.	Section 9.
1 Edw. 8 & 1 Geo. 6. c. 38.	The Ministers of the Crown Act 1937.	The whole Act.
6 & 7 Geo. 6. c. 5.	The Minister of Town and Country Planning Act 1943.	Section 9 so far as it relates to the salary of the Minister.
8 & 9 Geo. 6. c. 19.	The Ministry of Fuel and Power Act 1945.	Section 3(3) so far as it relates to the salary of the Minister. Section 7(1). Schedule 2.
9 & 10 Geo. 6. c. 55.	The Ministerial Salaries Act 1946.	The whole Act.
5 & 6 Eliz. 2. c. 47.	The Ministerial Salaries Act 1957.	The whole Act.
1964 c. 98.	The Ministers of the Crown Act 1964.	Section 2.
1965 c. 11.	The Ministerial Salaries and Members' Pensions Act 1965.	Sections 1 and 2, section 16, Schedule 1 and so much of Schedule 4 as amends the Ministers of the Crown Act 1937.